

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

12/26

Present:

Justice Jamal Khan Mandokhail
Justice Shahid Waheed
Justice Muhammad Shafi Siddiqui

Crl.P.L.A.No.647/2023 & J.P.No.199/2023

(On appeal against the order/judgment dated 05.04.2023 passed by the High Court of Sindh, Circuit Court, Hyderabad in Criminal Appeals No.D-79 & D-86/2021)

Abdul Raheem (in Crl.P 647/2023)
Lajbar (in JP 199/2023)

...Petitioner(s)

VERSUS

The State through Special Prosecutor ANF

...Respondent(s)

For the Petitioner(s) : Mr. Kamran Murtaza, ASC with Syed Rifaqat Hussain Shah, AOR in Crl.P.No.647/2023

Mr. Abdul Wasay Khan, ASC in J.P.No.199/2023 (Through Video Link Karachi)

For the Respondent(s) : Ch. Ehtisham ul Haq, SP, ANF

Date of Hearing : 10.02.2026

ORDER

Jamal Khan Mandokhail, J:- The prosecution's case, as per the complainant, Zahoor Shah, SI is that on a spy information, a raiding party under his supervision apprehended the petitioners, in both petitions, near Ayuob Hotel, National Highway, Hyderabad. At the time of their arrest, they were allegedly carrying black and dark brown travelling bags respectively on their shoulders. Upon search of the black bag carried by petitioner Abdul Raheem, 11 packets of Charas wrapped in white plastic shopper, each packet weighing one kilogram, were recovered. The entire recovered substance was re-packed in the black bag, which was then wrapped in a white plastic shopper and sealed for chemical examination. Likewise, upon search of brown coloured bag carried by petitioner Lajbar, 11 packets of Charas wrapped in white plastic shopper were recovered, each weighing one kilogram. The entire material was similarly re-packed in the brown bag, which was then wrapped in a white plastic shopper and sealed for chemical examination. The contraband material was taken into custody

through a recovery memo in presence of witnesses. Thereafter, FIR No. D040400719 dated 05.04.2019 under section 9(c) of the Control of Narcotic Substances Act, 1997 (**CNSA**) was registered at Police Station, ANF, Hyderabad by the complainant. At the bottom of the FIR, the complainant alleged that he was directed by higher officers to conduct the investigation. Subsequently *challan* along with chemical examiner's report was submitted before the Special Judge, Control of Narcotics Hyderabad (**Trial Court**). The Trial Court convicted the petitioners under section 9(c) of the CNSA and sentenced each of them to life imprisonment and a fine of Rs.100,000/-, with an additional one year S.I. in default of payment, with a benefit of section 382-B, Code of Criminal Procedure (**Cr.P.C.**). Appeals filed by the petitioners before the High Court of Sindh, Circuit Court, Hyderabad, were dismissed through the impugned judgment, hence, these petitions for leave to appeal.

2. Arguments have been heard and record has been perused. The learned counsel for the petitioners objected to the complainant's dual role as the investigating officer (**I.O.**). After an FIR in cognizable offences is registered, the Station House Officer (**SHO**) or the relevant head in Anti-Narcotics Force's cases, in exercise of his power under section 156 of the Cr.P.C., directs an officer to investigate the matter within his jurisdiction. Such nomination is formally recorded in the daily diary (*Roznamcha*). Investigation is essentially a process of collecting evidence to gather the actual facts of the case in order to discover the truth and identify any violation(s) of law. The process of investigation is governed by Chapter XIV of the Cr.P.C., whereas, Chapter III of the CNSA provides the procedure for investigation in narcotics cases. In narcotics cases, the investigation effectively begins after the initial raid, seizure and registration of an FIR. It continues through all subsequent steps till the final submission of report, based upon the material and evidence collected. An investigation therefore, forms the foundation of the prosecution's case upon which the judicial determination of guilt or innocence of an accused is formed. Under such circumstances, the I.O. is under an obligation to adhere strictly to due process, ensuring neutrality, fairness, transparency and the protection of rights of both the complainant and the accused. The process must be conducted in an unbiased and lawful manner, without treating allegations as predetermined

facts, by adopting the principle of due process, which is a fundamental right of an accused, as mandated by Article 10A of the Constitution of the Islamic Republic of Pakistan, 1973 (**Constitution**). Furthermore, where specific timelines for the completion of an investigation are provided in various statutes, such periods must be strictly 'adhered to'.

3. The question under consideration is whether the appointment of a complainant as the I.O. is legal? Technically, such an appointment is not illegal; however, the crucial issue is whether a complainant or informant of a case, upon becoming the Investigating Officer, can remain impartial and ensure that the investigation is conducted in consonance with the principles of justice, fair play, and transparency? As per the police rules, the duty assigned to an investigating officer is to find out the truth of the matter under investigation with an object to discover the actual facts of the case. Naturally, a complainant is always inclined towards conviction, therefore, it is near to impossible for a complainant to investigate his own complaint with open-minded objectivity required to collect evidence for and against the complaint (FIR). Instead of searching for the truth and collecting every possible evidence, the I.O. might confine himself to only look for evidence that proves his own complaint and validate his allegation and thereby to avoid consequences of providing false or incorrect information. Such conduct of the I.O. may consciously or unconsciously affect the right of an accused during the investigation. It would, therefore, be illogical to presume that at the end of the investigation, the complainant/informant in his dual capacity as investigating officer would submit a closure report to conclude that the information given by him against an accused, implicating him in the case is false. For this reason, such an investigation is often viewed as tainted and unreliable, therefore, is considered detrimental to the administration of justice. Consequently, the dual role of a police officer acting as both complainant and I.O. is highly discouraged, particularly in narcotics cases, which carry stringent punishments. However, in case, a complainant is appointed as I.O., the appointing authority must assign cogent reasons in this behalf, otherwise, it weakens the prosecution's case. In such matters, the court must closely examine the evidence with extreme caution. To ensure a fair, natural and unbiased investigation free from any doubt, it is

recommended that the task of investigation should be entrusted to an impartial official, vested with requisite authority, rather than the complainant. This is necessary to eliminate any potential bias or predetermined conclusion, and to ensure due process and fair trial.

4. In the case in hand, the complainant acted as an investigating officer. He appeared before the Trial Court as PW1 and deposed that the Incharge/SHO of PS ANF, Hyderabad, namely Aftab authorized him to conduct the investigation, whereas, in the F.I.R., it is mentioned that the investigation was entrusted to him by 'higher authorities', without disclosing their specific names and designations. The statement of the complainant before the court therefore contradicts with the contents of the FIR, regarding his appointment as the I.O. Besides, it is a fact on the record that after the alleged recovery, he left the site for the registration of FIR, thereafter, he started the investigation. The I.O. did not explain why the investigation was not conducted at the spot. The purpose of collecting evidence at the scene of occurrence is to record the spontaneous account of the incident through the statements of the witnesses and available circumstantial evidence. If the statements of the witnesses are recorded subsequently at the police station, it raises suspicion that they were recorded after deliberation and consultation. Although such statements are admissible, they are generally evaluated with extreme caution by the courts. In the present case, the statements of the witnesses under section 161, Cr.P.C. were admittedly recorded later by the I.O. at the police station, rather than recording the same immediately at the spot. The manner in which the investigation was entrusted to the complainant and the way it was conducted, is not free from doubt.

5. The complainant, while appearing before the Trial Court, had produced the sealed parcels of the case property allegedly recovered from both petitioners, which were desealed by the Court, but it was not observed whether the parcels bore the seal of police or of the forensic lab. The complainant stated that the parcels bear his signatures, but he did not mention the signatures of the recovery witness upon both the parcels. On the other hand, the recovery witness appeared before the Trial Court as PW2, and contended that he signed the parcels. However, the court observed that his signatures were not visible. Thus, the recovery witness did

not corroborate the statement of the complainant with regards to identification of the parcels before the court in order to prove that the parcels were the same, which were recovered from the petitioner and were sent to the examiner. Moreover, the report of the forensic science laboratory fails to specify to whom the remaining material was returned by the Chemical Examiner. Additionally, the *Moharar* provided no testimony regarding the receipt of the material back from the laboratory. The I.O. also failed to explain that when the parcels were received from the laboratory, who received them and where were they placed, before they were presented in the court. The record does not reflect whether the forensic laboratory's seals were intact when both the parcels were produced. Since the parcels produced in the Court lacked both the signatures of the recovery witness and any distinguishing identification marks upon them, the prosecution failed to prove that the material produced before the Court was actually the same which was originally recovered from the petitioner and sent to the chemical examiner.

6. The complainant (PW1) further stated before the Trial Court that on 05.04.2019, he handed over the narcotics to Salman, SI, who was Incharge of *Malkhana* for safe custody. The Incharge appeared before the Court as PW4, and stated that on 08.04.2019, he delivered the material to the complainant for chemical examination. The complainant admitted the fact that he received the material from the Incharge *Malkhana* on the stated date but he further added that he handed over the material to Ameen, PC (PW3) for onward transmission to the office of chemical examiner at Karachi. No plausible reason has been advanced by the complainant/I.O. for handing over the material to Ameen, instead of personally depositing the same before the forensic laboratory. Even otherwise, if the I.O. wanted Ameen to receive the material from *Malkhana* for taking it to the laboratory, a Road Certificate should have been issued to Ameen authorizing him, but the needful was not done. Although the I.O. relied upon a letter claiming to have authorized Ameen to transport the material to the laboratory, but that authorisation was not presented to the *Moharar*, and Register No. 19 contains no entry regarding said authorization. Admittedly, the material remained in complainant's possession before it was handed over to Ameen, with no explanation as to where it was kept during this intervening period.

This exercise creates doubt regarding safe custody of the material with I.O. and its safe transmission onward to the laboratory by Ameen.

7. The manner in which the investigation was conducted, the recovery effected, the material sent to the forensic science laboratory, its return by the examiner, and the subsequent retention of the parcels by the I.O., instead of redepositing them in the *Malkhana*, all are short of the settled principles governing due process and fair trial. It is settled principle of criminal jurisprudence that the benefit of a slightest doubt arising in the prosecution's case must be extended to the accused, especially when the complainant acts in his dual capacity as an I.O. Under such circumstances, the act of the complainant is not free from doubt. Both the fora below mis-appreciated the evidence and failed to extend the benefit of doubt to the petitioner, which is an illegality; hence, they came to a wrong conclusion. The judgments of the fora below are, therefore, not sustainable.

These are the reasons for our short order dated 10.02.2026, which is reproduced herein below:

For the reasons to be recorded later, these petitions are converted into appeals and allowed. The judgments of the High Court and the Trial Court dated 05.04.2023 and 07.07.2021, respectively, are set aside. The petitioners are acquitted of the charge. They shall be set at liberty forthwith, if not required to be detained in connection with any other case.

Sd/----J

Sd/----J

Sd/----J

Islamabad

10.02.2026

K.Anees & Saniya Diyar, LC/-

APPROVED FOR REPORTING